



Maritime &
Coastguard
Agency

Guidance

MGN 413 (F) Amendment 3 voluntary code of practice for employment of non-European area (EEA) fishing crew

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Contents

Summary

1. Introduction
2. Recognising the issues to be addressed
3. Additional MCA guidance and reference information
4. More information

Appendix A - Social and practical responsibility – a code of practice for employment of non-EEA fishing crew.

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Summary

This notice aims to raise awareness of the voluntary Code of Practice, originally produced by the Scottish Fishermen's Federation (SFF) in consultation with the Fishing Industry Safety Group (FISG) - appendix A.

Amendment 3 updates reference only.

1. Introduction

1.1 The International Labour Organisation (ILO) Regulations brought about changes in many areas and with the introduction of the Merchant Shipping (Work in Fishing Convention) Regulations 2018 (<https://www.legislation.gov.uk/ukSI/2018/1106>) (ILO 188). The code of practice for employment of non-European economic area (non-EEA) fishing crew was reviewed to take account of this and updated immigration policies.

1.2 Fatalities and incidents have occurred whilst fishermen have been living onboard fishing vessels, alongside in port.

1.3 Many of these vessels are not originally designed to provide living accommodation for long periods of time and have very basic cooking, washing, heating and sanitary facilities requiring those who have to live aboard to "make do" in conditions which may pose undue risks compromising their safety.

1.4 MGN 425 (M+F) amendment 3 risks for those sleeping on "dead ships" outlines the risks and considerations to ensure fishers on board are sleeping in safe conditions.

2. Recognising the issues to be addressed

2.1 It is acknowledged that the practice of living aboard these vessels is a reality. The voluntary code of practice for employment of non-European economic area (EEA) fishing crew was produced for the fishing industry to refer to and follow in the hope that in doing so, any further fatalities might be prevented.

2.2 The code of practice at appendix A to this MGN is based on that produced by SFF in 2010 and any future updates will be in consultation with MCA's Work in Fishing Convention Tripartite Working Group.

3. Additional MCA guidance and reference information

- Living and working conditions under ILO 188 - GOV.UK
(<https://www.gov.uk/guidance/living-and-working-conditions-under-ilo-188>)
- ILO Work in Fishing Convention - GOV.UK
(<https://www.gov.uk/government/collections/ilo-work-in-fishing-convention>)
- Fishing certification and training - GOV.UK
(<https://www.gov.uk/guidance/fishing-certification-and-training>)

4. More information

Seafarer Safety and Health Branch
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Bay 2/17
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Telephone: +44 (0)203 81 72250

Email: workinfishing.convention@mcga.gov.uk

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Please note that all addresses and telephone numbers are correct at time of publishing.

Appendix A - Social and practical responsibility – a code of practice for employment of non-EEA fishing crew.

Background

The aim of this code of practice is to ensure consistency across the fleet and to act as a “check list” to avoid omissions.

It is not intended to be exhaustive or to replace other standards and guidance available on safety and habitability. It is intended to be a live document and aims to reflect change and experience.

Index

Section 1: Responsibility for Safety

Section 2: Training

Section 3: Safety Alongside

3.1 Health and Safety policy

3.2 Risk Assessment

3.2.1 Shore Power

3.2.2 Alarms

3.2.3 Means of Escape

3.2.4 Fire Precautions

3.2.5 Alcohol and drugs

3.2.6 Smoking

Section 4: Domestic Facilities

4.1 Accommodation

4.2 Ventilation, Lighting and Heating

4.3 Showering, Laundry and Sanitary Facilities

4.4 Cooking and Food

Section 5: Recreational facilities & liaison with Local Authorities and Organisations

Section 6: Medical / Dental Facilities

Section 7: Conditions of Employment

Section 8: Adequate wet weather gear and clothing

Section 9: Legal Requirements and Discipline

Section 1: Responsibility for Safety

Responsibility for safety rests with the owners. Matters of day to day management and control, rest with the skipper (who may of course be the owner or co-owner). However, this does not remove the responsibility each crew member has to himself and his shipmates. See MGN 587 (F) amendment 2. (<https://www.gov.uk/government/publications/mgn-587-f-amendment-2-ilo-health-and-safety-responsibilities>)

To meet this, each crew member must hold current MCA recognised certificates in :

- basic sea survival
- basic fire fighting
- basic first aid and
- basic health and safety
- medical fitness certificate – see MGN 1883 (F) amendment 5 (<https://www.gov.uk/government/publications/msn-1883-f-amendment-5-work-in-fishing-convention-no-188-medical-examination-and-certification-for-fishers>) and MGN 1887 (M) amendment 1

<https://www.gov.uk/government/publications/msn-1887-m-amendment-1-maritime-labour-convention-2006-medical-certification>) and, in addition,

- safety awareness and risk assessment, if employed on a UK vessel for two years

In the event of an accident there will be the standard investigations by the legal authorities. If fault or shortcomings are found, legal responsibility will be upheld, and in the event of offences having taken place, legal action may be taken.

In addition to the guidance below, the owner, skipper and crew must be familiar with the vessel layout and safety precautions including escape routes and safety systems.

A safety induction must be carried out for each crew member on arrival and a list be maintained, signed by each crew member to verify that they have received both their induction and a full explanation of the vessel's risk assessment.

A carefully conducted risk assessment will highlight the dangers to the safety of you and your crew and allow preventative action. It makes every good sense to ensure that yours is done thoroughly and in date. It should be revised when any incident occurs, and in any case, annually. (See also Safety Alongside – Section 3).

Section 2: Training

Non-UK national crew will arrive from their home country with certification which may or may not have MCA recognition. This must be checked and, in the case of those from the Philippines, there is no satisfactory equivalent of the Basic Health and Safety or Safety Awareness and Risk Assessment Course. It will therefore be necessary to ensure that each person has completed the course before their first trip. The Approved Training Providers will assist in this matter (contact details can be obtained from SEAFISH).

In any case, on the occasion of the first trip with new crew, a vigilant assessment of level of competence makes good sense.

Section 3: Safety alongside

This has been the most visible site of problems, with some very tragic consequences. The MCA has issued a guidance note under the title “Assessment of risks for those sleeping on dead ships”, published as

MGN 425 (M+F) amendment

(<https://www.gov.uk/government/publications/mgn-425-mf-amendment-3-risks-for-those-sleeping-on-dead-ships/mgn-425-mf-amendment-3-assessment-of-risks-for-those-sleeping-on-dead-ships>) 3 and the contents are covered within the relevant sections of this code of practice.

Section 3.1 Health and safety policy

Where more than 5 workers are employed, a written statement of the employer's general policy with regard to health and safety is required, including the arrangements for implementing the policy, which should be brought to the notice of the workers. Guidance on completing a health and safety policy can be found in MGN 596 (F).

(<https://www.gov.uk/government/publications/mgn-596-fishing-safety-helping-to-improve-safety-fishing-vessels>)

Section 3.2 Risk assessments

All vessels of whatever size are required to conduct risk assessment.

Guidance on completing a documented risk assessment can be found in

MGN 596(F). (<https://www.gov.uk/government/publications/mgn-596-fishing-safety-helping-to-improve-safety-fishing-vessels>) An example of a safety

management system can be found in the on-line safety folder

<https://www.safetyfolder.co.uk/> (<https://www.safetyfolder.co.uk/>). See also

MGN 587(F) amendment 2 ILO Health and safety responsibilities.

(<https://www.gov.uk/government/publications/mgn-587-f-amendment-2-ilo-health-and-safety-responsibilities>)

Other useful information may be found in the Fishermen's Safety Guide (Ref: MCA/034) which can be obtained from the MCA : Fishermen's safety guide - MCA034 - Maritime and Coastguard Agency - Safety materials

ordering service ([https://mca-ws.apsmos.com/ViewProduct.html?](https://mca-ws.apsmos.com/ViewProduct.html?sp=Sfishermenssafetyguide)

[sp=Sfishermenssafetyguide](https://mca-ws.apsmos.com/ViewProduct.html?sp=Sfishermenssafetyguide))

The guide is written in such a way as to help with the preparation of a risk assessment. A carefully conducted risk assessment will highlight dangers to the safety of you and your crew and allow preventative action. It makes good sense to ensure that yours is completed thoroughly and in date. It should be revised when any incident occurs and in any case, annually. The safety folder can be used to guide the risk assessment process. In addition, the following issues should also be addressed:

Section 3.2.1 Shore power

Owners and skippers must ensure that the vessel complies with the requirements of MSN 1872 (F) Amendment 1 or

(<https://www.gov.uk/government/publications/msn-1872-amendment-1-safe-working-for-construction-and-use-of-fishing-vessels>) MSN 1873 (F) Amendment 1 (<https://www.gov.uk/government/publications/msn-1873-amendment-1-construction-and-safe-operation-of-fishing-vessels-of-24m-and-over>) in relation to shore power. In addition, where crew live on board, the following factors should be considered.

If the boat is to rely on shore power, is it suitable and sufficient for both safety and domestic systems? It should be safely installed with an appropriate circuit breaker.

- does it have sufficient reliable capacity to support the larger power using services, such as heating, lighting and ventilation all working together?
- is the shore power supply sufficient to run a fire pump and to supply fire and gas detection systems?
- can the live on board crew change over onto ship's power?
- if the shore power fails when the crew are asleep, will they know?

Section 3.2.2 Alarms

Owners and skippers must ensure that the vessel complies with the requirements of MSN 1871 (F) Amendment 2 (<https://www.gov.uk/government/publications/msn-1871-amendment-no-2-f-the-code-of-practice-for-the-safety-of-small-fishing-vessels-of-less-than-15m-length-overall>), MSN 1872 (F) Amendment 1 or MSN 1873 (F) Amendment 1 in relation to alarms. In addition, where crew live on board, the following factors should be considered.

- are the fire detection systems and other safety alarms working and do they continue to work if shore power is used?
- do the alarms sound loud and clear in the accommodation and sleeping cabins? (consider fitting supplementary smoke detectors)
- is a mobile phone available to them if they are alone onboard, and relevant contact numbers including emergency services?
- are the crew fully aware of and familiar with emergency escape routes from the accommodation spaces?
- any other alarms fitted such as: carbon monoxide, gas, high level bilge; are they operational?
- can someone outside the vessel raise the alarm, if the crew are sleeping below deck?

Section 3.2.3 Means of escape

Owners and skippers must ensure that the vessel complies with the requirements of MSN 1872 (F) Amendment 1 or MSN 1873 (F) Amendment 1 in relation to means of escape. In addition, where crew live on board, the following factors should be considered.

- are the escape routes clearly marked and well lit?
- are they regularly inspected by the skipper or a designated crew member to ensure they are kept clear?
- do all sleeping cabins have at least two separate means of escape to open deck?
- is there a safe means of escape to shore?
- if a fire in one location could block the escape, is an alternative available?
- are all doors and hatches in good working order and can they be easily opened, at least from the inside?
- are fire doors self-closing or kept closed? (Note: unapproved holdbacks must be removed – only electromagnetic holdbacks linked to the fire detection system will be acceptable.)

Section 3.2.4 Fire precautions

Owners and skippers must ensure that the vessel complies with the requirements of MSN 1871 (F) Amendment 2, MSN 1872 (F) Amendment 1 or MSN 1873 (F) Amendment 1 in relation to fire precautions. In addition, where crew live on board, the following factors should be considered.

- have heaters and cooking appliances been regularly serviced and checked that they are safe to use in the accommodation?
- are any unapproved cooking or heating appliances being used? Free-standing heaters should be avoided.
- if LPG heating is used, is it in date for maintenance and test, and in compliance with MGN 312 (F) (<https://www.gov.uk/government/publications/mgn-312-liquid-petroleum-gas-and-diesel-fueled-appliances-on-fishing-vessels>) (storage of gas and necessary ventilation).
- are gas and carbon monoxide detectors provided in accommodation areas?
- is ventilation working (a check should be made that the crew have not tried to block vents).
- are other heaters clearly away from combustible materials?

- are fire dampers including external ventilation flaps in working order?
- are all electric appliances safe, with correct wiring, fuses (e.g. radios, TVs, toasters, kettles, phone chargers etc)?
- have the crew been familiarised with these basic safety precautions, including their escape routes and safety systems?
- have the crew been instructed in how to start a fire pump?
- are the crew aware of the risks of rerouting power supplies?
- are the fire extinguishers and other fire-fighting equipment and devices in date for maintenance and test and ready for immediate use?
- do all crew members know their whereabouts and how to work them?

Section 3.2.5 Alcohol and drugs

A source of problems has been the occasional excessive use of alcohol. Owners and skippers should consider adopting an alcohol and drugs policy for their vessels. Realistically, there is little place for alcohol or recreational drugs onboard. See MGN 193 (M+F) amendment 2 (<https://www.gov.uk/government/publications/mgn-193-amendment-2-mf-the-effects-of-alcohol-or-drugs-at-sea>) and MGN 587 (F) amendment 2. (<https://www.gov.uk/government/publications/mgn-587-f-amendment-2-ilo-health-and-safety-responsibilities>)

The standard contract referred to in Section 10 headed ‘Discipline’, notes drunkenness as a standard offence, listing ‘drunk while on duty’;

“creating trouble on board due to intoxication; and failure to perform assigned duties due to ‘intoxication’ constitutes misconduct which attracts penalties ranging from warning and reprimand up to dismissal. You should also be aware of the Customs regulations in respect of goods liable to duty.”

It is recognised that some crew will wish to consume alcohol when ashore for recreation, but tragic accidents have occurred when crew whose balance or risk perception may be impaired due to alcohol have tried to re-join the vessel. Consideration should be given to recommending that crew remain ashore temporarily on such occasions so that they can safely re-join the vessel when the effects of alcohol have worn off. This would not be contrary to immigration controls for non-EEA crew as they are entitled to shore leave.

Section 3.2.6 Smoking

Smoking in the accommodation is statistically the most common cause of fires; owners and skippers should consider enforcing a smoking policy to lessen the risk. Smoking in the cabin is not recommended.

Section 4: Domestic Facilities

Owners and skippers must ensure that the vessel complies with the requirements of MSN 1871 (F) Amendment 2, MSN 1872 (F) Amendment 1 or MSN 1873 (F) Amendment 1 in relation to domestic facilities. In addition, where crew live on board, the following factors should be considered.

Section 4.1 Accommodation

Accommodation should be maintained in a clean and habitable condition. Individual sleeping berths with suitable bedding should be provided for each fisherman: berths should be dry, with reasonable comfort and privacy.

Section 4.2 Ventilation, Lighting and Heating

- does the boat's ventilation, lighting and heating work properly when on shore power, if used?
- are the vents from the sleeping cabin open and fully operational? Air vents must not be blocked up.

Section 4.3 Showering, Laundry and Sanitary Facilities

The crew should have provisions for showering and washing clothes whilst alongside. If it is impossible to provide these to a realistically adequate standard for living onboard while alongside, the location of local facilities and suitable access to them should be provided.

Adequate sanitary facilities are clearly essential, and provision must be made onboard.

Care should be taken to ensure that use of onboard facilities do not breach harbour regulations.

Harbour Masters, local Associations and the Fishermen's Mission have all engaged to a greater or lesser degree to assist with provision of these facilities at most ports. A list of contacts is provided at annexes 1 and 2 of this notice.

Section 4.4 Cooking and Food provision

Cooking facilities. If galley equipment is electrical, it must be able to operate on shore power if this is to be used. If LPG, is it in date for

maintenance and test?

Food provision – must be suitable and sufficient, and provided without charge to the crew.

Cold fresh drinking water and hot water must be available.

Food storage and cooking facilities should be suitable and sufficient.

Section 5 : Recreation facilities and liaison with local authorities and organisations

Shore leave and access to recreational and communication facilities in port should be facilitated. This would not be contrary to immigration controls for non-EEA crew.

There have been some very good examples of welcome and kindness to non-EEA crew members by the local communities where their boats are based. This is to be much encouraged, enhancing as it does the lives of foreign crew and also the communities who welcome them.

The Fishermen's Mission (Royal National Mission to Deep Sea Fishermen) has been particularly active in this matter and the industry's thanks go to the organisation.

Section 6: Medical and dental facilities

All crew should have access to medical care both on board and ashore. Medical care should be provided without charge to the crew. See MGN 586 (F) amendment 2 (<https://www.gov.uk/government/publications/mgn-586-f-amendment-2-ilo-work-in-fishing-convention-2007-medical-care>).

Section 7: Conditions of employment

All crew should be paid in full at least monthly in accordance with their fisherman's work agreement. See MGN 585 (F) amendment 1 (<https://www.gov.uk/government/publications/mgn-585-f-amendment-1-ilo-work-in-fishing-convention-payment-of-fishermen>).

Repatriation must be paid for by the employer. See MGN 584 (F) amendment 1. (<https://www.gov.uk/government/publications/mgn-584-f-ilo-work-in-fishing-convention-repatriation>)

All crew must have adequate rest. See MSN 1884 (F) amendment 1 (<https://www.gov.uk/government/publications/msn-1884-f-ilo-work-in-fishing-convention-working-time>).

Appropriate working clothes and personal protective equipment must be provided, without charge to individual fishermen. See MSN 1870 (M+F)

amendment 5 (<https://www.gov.uk/government/publications/msn-1870-mf-amendment-5-personal-protective-equipment-regulations-1999>).

Section 8: Adequate Foul Weather Gear and Warm Clothing

Given the climate in the countries of origin of some non-EEA crew, it will come as no surprise that most will turn up badly (or not at all) provided for without oilskins and suitable warm clothing. Consideration should be given to provision of this.

Section 9: Discipline

Each non-EEA crewman will arrive under the conditions of a contract. The “Standard Terms and Conditions Governing the Employment of Filipino Seafarers onboard Ocean-Going Vessels” is an example of such a contract and provides protection for both the employer and employee. This must comply with UK requirements, as explained in MGN 583(F) amendment 2 (<https://www.gov.uk/government/publications/mgn-583-f-amendment-2-ilo-work-in-fishing-convention-fishermens-work-agreements>). These terms must be adhered to.

It goes without saying that the terms and conditions of the contract should be fully understood by both parties. One matter worthy of specific emphasis is the avoidance of the possibility of desertion; this is potentially most harmful.

The standard contract also notes drunkenness as a standard offence, subdividing into ‘drunk while on duty’; ‘creating trouble on board due to intoxication’; and ‘failure to perform assigned duties due to intoxication’ as misconduct attracting penalties ranging from warning and reprimand up to dismissal.

Annex 1

Harbour Master Offices

Aberdeen Harbour Board Tel: +44
(01224) 597000

Newquay Tel: +44 (01637)
872809

Arbroath Tel: +44 (01241) 872166

Orkney Harbour Authority Tel:
+44 (01856) 873636

Ardglass Tel: +44 (02844) 841291

Padstow Tel: +44 (01841)
532239

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Eyemouth Harbour Office Tel: +44 (018907) 50223	Poole Telephone no: +44 (01202) 440210
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Kirkwall Harbour Office Tel: +44 (01856) 872292	Torpoint Tel: +44 (01752) 813658
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Looe Tel : +44 (01503) 262839	Warrenpoint Tel: (02841) 773381
Lossiemouth Harbour Office Tel: +44 (01343) 813066	West Bay Tel: +44 (01308) 423222
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Macduff Harbour Office Tel: +44 (01261) 832236	Wick Harbour Office Tel: +44 (01955) 602030
Mevagissey Tel +44 (01726) 843305	

Watchtowers:-

Fraserburgh Harbour: 01346 515926

Peterhead Harbour: 01779 483600

Aberdeen Harbour: 01224 597000

Macduff Harbour: 01261 832236

Annex 2 - Fishermen's Mission Contacts – April 2020

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(<http://www.fishermensmission.org.uk/>) Registered Charity: 232822 Patron:
HM The King

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T&F: 01224 584651
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c/o Age UK
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(M) 07917 754527

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AdminHull@fishermensmission.org.uk

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Freshwater Quarry
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(e): FleetwoodCentre@fishermensmission.org.uk

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(M) 07736 133209

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SKYE
(M) 07469 118637

(e): skyempo@fishermensmission.org.uk

Annex 3 Home Office customer contact centre

The customer contact centre can answer enquiries about working in the UK and transit visas such as joining a ship.

Please be aware that the customer contact centre is currently experiencing very high call demand and therefore you may experience difficulties in contacting them.

Full information on all of our schemes and programmes is available at,

<https://www.gov.uk/browse/visas-immigration/work-visas>
(<http://www.gov.uk/browse/visas-immigration/work-visas>)

Phone: 0300 123 2241

Opening Hours:

Monday to Thursday 09:00 to 16:45

Friday 09:00 to 16:30.



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